IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE LAW COURT COMPLEX COMMERCIAL DIVISION '10' HELD IN ACCRA ON FRIDAY THE 30TH DAY OF JANUARY, 2026 BEFORE HER LADYSHIP ADELAIDE ABUI KEDDEY, J.

SUIT NO. GJ-CM/INTD/0301/2025

PACIFIC OIL GHANA LIMITED - PLF/J/CR

VRS

HILSON PETROLEUM GHANA LTD - DEFT/J/DR

AND

DODDU JERRY BRASSFIELD - CLAIMANT

JUDGMENT

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[1] The Claimant/Plaintiff (hereinafter referred to as ***"The Plaintiff"***) commenced the instant action against the Execution Creditor/Defendant (hereinafter referred to as ***"The Defendant"***) by filing a Notice of Claim dated 25th February 2025 in respect of property described as Plot No. 6, Oleander Street, Humphrey Tenzagh Residence, East Legon Accra ("The Property"), attached by the deputy sheriff.

[2] In response to same, the Defendant filed a Notice of Dispute of Claim on 17th March 2025.

[3] Subsequently the parties were ordered to appear in court for the issues between them to be settled. Thereafter, the parties filed their Affidavits of Interest on 5th May 2025 and 7th May 2025.

[4] Parties filed their Witness Statements and Pre-trial Checklists as ordered by the court on 2nd July 2025 and 22nd July 2025. Trial proceeded on 10th December 2025 and ended on 11th December 2025.

THE CASE OF THE PLAINTIFF

[5] It is the case of Plaintiff that the property in dispute initially belonged to one Humphrey Tenzagh who later sold it to him. Thereafter, he effected the necessary transfer into his name and registered same at Lands Commission.

[6] That he entered into the said agreement with Humphrey Tenzagh after he gave him financial assistance of Three Hundred and Fifty Thousand United States Dollars (US$350,000) to enable Humphrey augment his business.

[7] Plaintiff testified that he represented his company Eagle Star Mining International Limited to give the said assistance to Humphrey's company known as Hilson Petroleum Ghana Ltd as his representative in 2023.

[8] The two companies executed an agreement for the said Three Million Ghana Cedis to be paid directly to BOST to enable Hilson Petroleum Ghana Ltd to secure product from BOST G 40 Collection account.

[9] That the said $350,000 was to be repaid in six (6) months but Humphrey Tenzagh defaulted.

[10] Plaintiff testified that Humphrey Tenzagh prepared a Site Plan in his name thereby transferring his interest to him. Thereafter he started making the necessary registration at Lands Commission for the transfer of the Land Title into his name.

[11] That in the course of the registration, he saw the advertisement of the property mentioned for sale. Plaintiff inquired about it and filed the instant claim before the court.

[12] The Plaintiff is therefore praying the Court to set aside the attachment by the Court on the disputed property.

THE CASE OF THE DEFENDANT

[13] Mr. Ahmed Mohammed, Finance Manager of the Defendant filed a Witness Statement for and on behalf of the Defendant on 22nd July 2025

[14] He testified that the Defendant transacted with the Judgment Debtor through its Managing Director, Humphrey Tenzagh when the Judgment Debtor was in dire need of funds to facilitate Letters of Credit for the purchase of a 35,000MT Gasoil.

[15] The Defendant thus offered a Supply Arrangement where the Defendant advanced the equivalent of a Million Ghana Cedis (GHS1,000,000.00) in Gasoil supply to the Judgment Debtor.

[16] That, in an attempt to induce the Defendant to accept the supply arrangement, the Judgment Debtor offered the subject matter land as security.

[17] It is the case of the Defendant that it does not know the Plaintiff and that the transaction between Humphrey Tenzagh and the Defendant Judgment Debtor took place sometime in 2023. That was when the said Humphrey pledged the subject matter property to the Defendant.

[18] Therefore, the claim of the Plaintiff is subject to the existing pledge between Humphrey Tenzagh and the Defendant.

[19] The Defendant is praying the Court to dismiss the claim of the Plaintiff on grounds of estoppel and for an order for judicial sale of the subject matter so that the Defendant can recover its judgment debt.

ANALYSIS AND DECISION

[20] **Order 48 rule 8 of High Court (Civil Procedure) Rules, 2004 (CI 47)** provides as follows:

> Where the claimants' consent or any of them so requests, or where the question in issue between the parties is a question of law and the facts are not in dispute, the Court may summarily determine the questions in issue between the claimants and make an order accordingly on such terms as may be just.

[21] In the case of **SALAMA VRS SHARANI [1973] 2 GLR 364**, Abban J (as he then was) was of the view that:

> *"…interpleader proceedings should not be confused with an ordinary action. The most important object of these interpleader proceedings is to enable the deputy sheriff, who has seized the property and is now in possession thereof, to obtain a relief and to get a decision of the court as regards the person to whom he has to release the property. The claims in respect of the property are made against the deputy sheriff and he is, in the technical sense, the defendant since the rival claims are being made against him. So that in a way the interpleader proceedings are intended for the benefit of the deputy sheriff, inasmuch as the decision of the court in the proceedings…would also enable him to know the right person to whom he should release the property. The deputy sheriff therefore issues out the interpleader summons to compel all the parties making the claims against him to come to court to establish the validity of their respective claims; and since he has no title himself, he drops out of the subsequent proceedings altogether…"*

[22] Thus, until this matter is determined, the deputy sheriff cannot perform his duties in relation to the execution of the judgment.

[23] Her Ladyship Sophia Akuffo JSC in ***Gihoc vrs. Hanna Assi [2005-2006] SCGLR 458 at 485*** summed up the burden of proof and standard of proof in civil cases in the following words

> *"Since the enactment of NRCD 323, therefore, except otherwise specified by statute, the standard of proof (the burden of persuasion) in all civil matters is by a preponderance of the probabilities based on a determination of whether or not the party with the burden of producing evidence on the issue has, on all the evidence, satisfied the judge of the probable existence of the fact in issue …hence, by virtue of the provisions of NRCD 323, in all civil cases, judgment might be given in favour of a party on the preponderance of the probabilities…"*

[24] To support his claim, the Plaintiff attached *a Land Title Certificate* marked as ***Exhibit "A"***, *a Proforma Invoice* marked as ***Exhibit "B"***, *Bank Statement* marked as ***Exhibit "C"*** and *Statement from National Petroleum Authority (Stock Balance Report)* marked as ***Exhibit "D"***.

[25] The Plaintiff also attached *Transfer Request Details* marked as ***Exhibit "E"***, *Transaction View* marked as ***Exhibit "F"***, *Financial Assistance Contract* marked as ***Exhibit "G"***, *a Receipt* marked as ***Exhibit "H"***, *Site Plan* marked as ***Exhibit J*** and *Documents from Lands Commission, Transfer Document* etc. marked as ***Exhibit "K" series***.

[26] Likewise, in support of its case, the Defendant attached *a Petroleum Loan and Purchase Agreement* marked as ***Exhibit "1"***, *Land Title Certificate of Humphrey Tenzagh* marked as ***Exhibit "2"***, *Bank Cheque showing a Loan Facility to Humphrey Tenzagh* marked as ***Exhibit "3"*** and *a Statement of Account* marked as ***Exhibit "3a"***.

[27] Defendant also attached *an Official Search Result from the Office of the Registrar of Companies* marked as ***Exhibit "4"***, *an Email Correspondence between Pacific Oil and Hilson Petroleum* marked as ***Exhibit "5"*** and *a Copy of Police Report* marked as ***Exhibit "6"***.

[28] The issue for determination is whether or not the Plaintiff has an interest in the subject matter property.

[29] Counsel for Plaintiff submitted that even if the judgment creditor is in possession of the title documents, the mere deposit or possession of the original title deeds by Humphrey Tenzagh with the judgment creditor for a loan facility does not confer any interest in the property of Humphrey Tenzagh in the absence of any instrument created to that effect and registered.

[30] That it is trite that a mortgage in writing is an instrument affecting land and same ought to be written and registered. See the case of ***Bank of Africa vs Gracefield Merchants Ltd & 2 Ors (Mike Twum & Anor – Claimants) 2 SCGLR 484***.

[31] On the other hand, Counsel for Defendant submitted that the Humphrey Tenzagh elected to give out his private property as security for the transaction with Defendant. Therefore by his actions, Humphrey Tenzagh is caught up by the principle of estoppel by representation.

[32] Thus, he could not have transferred any interest to the Plaintiff herein.

[33] Counsel cited **Section 26 of the Evidence Act, 1975 (Act 323)**, the English case of ***Pickard v Sears (1837) (112 ER. 179)*** and ***Social Security Bank v Agyarko [1991] 2 GLR 192-216***.

[34] **Section 26 of Act 323** on Estoppel by Conduct states as follows:

> *Except as otherwise provided by law, including a rule of equity, when a party has, by his own statement, act or omission, intentionally and deliberately caused or permitted another person to believe a thing to be true and to act upon such belief, the truth of that thing shall*

be conclusively presumed against that party or his successors in interest in any proceedings between that party or his successors in interest and such relying person or his successors in interest

[35] The locus classicus for the meaning of Estoppel by conduct can be found in the case of ***Pickard v Sears [supra]*** where the learned Chief Justice stated as follows:

"Where one by his words or conduct willfully causes another to believe the existence of a certain state of things, and induces him to act on that belief, so as to alter his own previous position, the former is precluded from averring against the latter a different state of things as existing at the same time"

[36] During cross-examination of the Plaintiff by Counsel for Defendant, this is what transpired on 10th December 2025:

Q. Mr. Doddu, prior to your registration of this property, did you do any search whether at the Lands Commission or the Collateral Registry to ascertain whether the subject matter was encumbered?

A. Yes my Lady. We made a search and the property was in the name of Mr. Humphrey Tenzagh.

Q. Without any encumbrance?

A. Yes, my Lady.

[37] Likewise, during cross-examination of the Defendant witness by Counsel for Plaintiff, this is what transpired:

Q. Do you have a judgment against Humphrey Tenzagh?

A. Yes, in one of the cases.

Q. Do you have a judgment with respect to this particular case against Humphrey Tenzagh?

A. No. It's against the company.

Q. Can you tell this court whether or not Humphrey Tenzagh was a party or Defendant to the Suit which judgment resulted in the attachment of the property in dispute?

A. He was a party.

Q. I put it to you that Humphrey Tenzagh was not a Defendant in the Suit titled Pacific Oil Ghana Ltd vs Hilson Petroleum Ghana Ltd?

A. So far as I know he was a party to the case.

Q. I further put it to you that Humphrey Tenzagh transferred his interest in the disputed property to the claimant long before you attached same.

A. I am not privy to that.

Q. I finally put it to you that the property in dispute belongs to the claimant and not the Defendant Judgment Debtor and therefore same cannot be attached in satisfaction of a judgment against the Judgment debtor.

A. My Lady, so far as I know the property is in the name of Humphrey and Humphrey has given the property to us as collateral for monies he took from us in respect of payment in advance for gas oil.

[38] It is a fact that a Limited Liability Company, being an artificial legal person can only act through the instrumentality of human beings who stand in certain legal relationships with the company.

[39] Therefore, it is legitimate for any reasonable person dealing with an officer of the company to presume that act as the act of the company and thereby hold the company liable.

[40] See the case of ***Dalex Finance and Leasing Company Ltd. vs. Ebenezer Denzel Amanor & ORS (2021) JELR 107271 (SC)***.

[41] However in the instant case, the evidence adduced at the trial shows that the subject matter property is not the property of the judgment debtor.

[42] ***Exhibit "J"*** is evident that registration of the subject matter by Plaintiff specifically the Site Plan commenced on 4th March 2024 before the said attachment by the deputy sheriff. The Plaintiff also tendered the Land Title Certificate of his grantor, Humphrey Tanzagh marked as Exhibit "A."

[43] ***Exhibit "G"*** which is headed Financial Assistance Contract between the Plaintiff and Humphrey Tenzagh states at Clause a- that:

> *"In the event of default on the part of the Recipient to fulfil his obligation under this contract of paying the three hundred and fifty thousand USD, the Recipient has agreed to use his landed Property known as House No. 6, Oleander Street, situate at East Legon as collateral or security for the Financier's interest of which same is covered by a Land Title Certificate with details stated below:*
>
> *Property Owner: Humphrey Tenzagh*
>
> *Land in Extent 0.05 hectare (0.12 of acre)*
>
> *Parcel No 8122 Block 16 Section 114*
>
> *Registry Map No: 001/114/1992*
>
> *Certificate No: GA 50349*

Volume: *53*

Folio *2197*

Plan No *70/2016"*

[44] On one hand, there is some evidence to prove the commencement of registration of the interest of the Plaintiff at the Lands Commission. On the other hand, there is no evidence of a transfer of the interest of Humphrey Tenzagh to the Defendant as alleged.

[45] In any case, the evidence before the Court does not establish that the said judgment debtor, Hilson Petroleum is the owner of the subject matter, neither is there any evidence to show that the said Humphrey Tanzagh was a party to the substantive suit to justify the attachment of his property in execution. See the case of ***Republic vs High Court Accra; Exparte Chinto (1993) JELR 66998 (SC)***.

[46] There is also no evidence of a contract guarantee executed by Humphrey Tanzagh and the Defendant and/or a security mortgage executed and registered in respect of the subject matter to support the claim of Defendant that it has a better interest over the subject matter.

[47] It is my considered view that any act of promise or representation by the Plaintiff to the Defendant in respect of the subject matter could not have culminated into a transfer of Plaintiff's personal interest in the property to the Judgment debtor.

[48] Having evaluated the evidence adduced at the trial, I am of the considered view that the Plaintiff has proved its case against the Defendant on a balance of probabilities.

[49] I hereby enter judgment in favour of the Plaintiff herein against the Defendant herein.

……..(sgd.)……

JUSTICE ADELAIDE ABUI KEDDEY

JUSTICE OF THE HIGH COURT

COMMERCIAL DIVISION

Counsel:

Isaac Essien, Esq., for Plaintiff/Claimant - Present

Alfred Kudzo Adukor, Esq., with Ronald Mawuenyegah Agodzo, Esq., holding brief for Akosua Asah Asante, Esq. for Defendant/ Judgment-Creditor - Present

Cases

Bank of Africa vs Gracefield Merchants Ltd & 2 Ors (Mike Twum & Anor – Claimants) 2 SCGLR 484. 9

Dalex Finance And Leasing Company Ltd. v. Ebenezer Densel Amanor & Ors (2021) JELR 107271 (SC 14

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Statutes

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Rules

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